

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 13  
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: July 16, 2025      TIME: 9:00 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing  
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be  
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

| LINE #                 | CASE #           | CASE TITLE                            | RULING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|------------------------|------------------|---------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 3</a> | 24CV454713       | Mohammad Valikhani vs FCA US LLC      | Hearing: Motion to Compel<br><br>Plaintiff's Motions to Overrule Preamble and to Compel Further Responses to Special Interrogatories, Set 1 (7/16/25); Form Interrogatories, Set 1 (7/18/25); and Requests for Production, Set 1 (7/30/25) will all be heard on July 30, 2025 at 9:00 a.m. in Department 13. The parties are ordered to meet and confer and to file a joint separate statement resolving and/or narrowing the issues in dispute on all three motions by July 23, 2025. |
| <a href="#">LINE 4</a> | 25CV460719       | WOODFIELD COMPANIES, LLC, vs<br>D. H. | Petition for Approval of Transfer of Structured Settlement Payment Rights<br><br>The unopposed petition is GRANTED.<br><br>Petitioner to submit the final order within 10 days of the date of the hearing.                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 5</a> | 2009-1-CV-149951 | C. Hui, Et Al Vs Q. Zhang, Et Al      | Motion: Enforce Settlement<br><br>Ctrl Click (or scroll down) on Line 5 for tentative ruling.                                                                                                                                                                                                                                                                                                                                                                                          |
| <a href="#">LINE 6</a> | 2009-1-CV-149951 | C. Hui, Et Al Vs Q. Zhang, Et Al      | Motion for Attorney's Fees<br><br>Ctrl Click (or scroll down) on Line 5 for tentative ruling.                                                                                                                                                                                                                                                                                                                                                                                          |

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## Calendar Line 2

**Case Name:** *ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC*

**Case Number:** 24CV448687

Defendant/Cross-Complainant (CAET) moves pursuant to the parties' Stipulated Protective Order to retain the Attorneys' Eyes Only (AEO) designation of portions of certain discovery responses, which designation has been challenged by Plaintiff/Cross-Defendant (ISJ).

CAET designated the discovery responses at issue AEO because they disclosed the identity of and contact information for its suppliers, as well as the fact that those suppliers dealt in the specified equipment and paid specified prices for it. CAET argues that disclosure of this information could allow Plaintiff "to use this non-public information, developed at great time and expense by CAET, in order to purchase the equipment directly from the specific suppliers, thus improperly cutting CAET out of the transaction entirely. In addition, Plaintiff could use CAET's non-public identifying information to go directly to the suppliers for future purchases and/or sales, or broker deals with third parties for equipment by using this information."

ISJ responds that Plaintiff has a right to participate in depositions taken in the case as well as attend trial. ISJ also argues that the defense cannot shield third-party witnesses from the Plaintiff while simultaneously using these third-party witnesses to support its loss of profits, and at trial, the suppliers would have to testify and Plaintiff would have a right to participate in the trial. ISJ also takes issue with CAET's alleged need to protect the information.

Ultimately, the Court agrees with CAET. First, the Court finds CAET has sufficiently articulated good cause why the information should be for attorneys' eyes only. Second, the information is not being "shielded" per se. The information is still disclosed to counsel, who can use it to obtain any additional appropriate information needed to prepare Plaintiff's case. As CAET explains, "Plaintiff's counsel is fully equipped to execute any litigation activities related to the suppliers, and will not require Plaintiff's involvement or input in this regard. Indeed, Plaintiff's counsel can easily conduct an inquiry with the suppliers as to their agreement to supply the equipment at issue to CAET for a certain price (i.e., CAET's claim for lost profits). Plaintiff's involvement is simply unnecessary in this regard." (Reply, at p. 2.)

ISJ's argument to the contrary, that Plaintiff itself must know the information, amounts to mere generalizations. ISJ concedes that the legal issues in the case seem straightforward, but asserts that "[u]nderstanding the negotiations surrounding the semiconductor equipment between the Defendant and its supplier(s) is very complex. Plaintiff's counsel needs the Plaintiff's help to defend against the Cross-Complaint, which would include preparing for depositions and trial." However, these conclusory statements are not supported.

At this stage of the proceedings, the Court finds that Plaintiff has failed to show that its prosecution of this case will be impaired by application of the "attorney's eyes only" designation pursuant to the protective order.